

ORIGINAL

FEDERAL MARITIME COMMISSION

Docket No. 02-02
Canaveral Port Authority- Possible
Violations of Section 1 O(b)(10),
Unreasonable Refusal to Deal or Negotiate

Docket 02-02

Served: April 17, 2002

EXTENSION OF TIME FOR RESPONSE

The Commission's February 25, 2002 Order to Show Cause in this proceeding set forth certain dates for submissions by the Respondent, the Canaveral Port Authority, and the Commission's Bureau of Enforcement. By notice served March 25, 2002, the Commission granted Respondent an additional twenty-one days, up to and including April 18, 2002 in which to file its initial response to the Commission's Show Cause Order and extended the proceeding's other deadlines by three weeks, except for the Commission's final decision date, which is due on November 22, 2002.

Respondent has requested an additional thirty days in which to file its initial response to the Commission's Order to Show Cause. In support of this request, Respondent advises that the parties have bargained in good faith during the past several weeks in an attempt to resolve the underlying dispute in this proceeding. Respondent states that substantial progress has been made in the negotiations, and states that the Bureau of Enforcement concurs in this view. Respondent states that

additional time would permit the parties to continue negotiations that could produce a settlement in this proceeding and in the companion proceeding in Docket No. 02-03, Exclusive Tug Arrangements in Port Canaveral Florida, Order of Investigation and Hearing. Respondent advises that representatives of the Bureau of Enforcement and Tugz International have stated that they are not opposed to the 30-day extension.

Good cause have been shown, the procedural deadlines in this proceeding are modified as follows:

Affidavits of fact and memoranda of law shall be filed by Respondent and any intervenors in support of Respondent no later than May 20, 2002.

Reply affidavits and memoranda of law shall be filed by the Bureau of Enforcement and any intervenors in opposition to Respondent no later than June 19, 2002.

Rebuttal affidavits and memoranda of law shall be filed by Respondent and intervenors in support no later than July 8, 2002.

Requests for a further evidentiary hearing subsequent to the submission of affidavits of facts and memoranda of law must be submitted no later than July 22, 2002, together with a statement setting forth in detail the facts to be proved, the relevance of those facts to the issues in this proceeding, a description of the additional evidence which would be adduced, and why such evidence cannot be submitted by affidavit.

Requests for oral argument, if any, must be submitted no later than July 22, 2002, along with a statement specifying the

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reasons therefore and why argument by memorandum is inadequate to present the party's case.

The Commission's final decision date continues to be November 22, 2002.



Bryant L. VanBrakle
Secretary